IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 402
CP(CAA)/3/ND/2025

IN THE MATTER OF:

Brightsun Equity Finvest Pvt Ltd And Everglow Equity Leasing Pvt Ltd And Rishikesh Barter Pvt Ltd With Sparsh Dealmark Pvt Ltd ... Applicant

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 03.02.2026

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner : Mr. Iswar Mohapatra, Mr. Animesh Pandey, Advs.
For Income Tax : Mr. Puneet Rai, SSC, Mr. Nikhil Jain, Adv.

HYBRID HEARING (PHYSICAL & VC)
ORDER

Mr. Iswar Mohapatra, Learned Counsel for the applicant is present physically. Mr. Nikhil Jain, Learned Counsel for the Income Tax Department is present through video-conferencing and has submitted that there is a huge demand pending with regard to the transferor companies No. 2, 3 & 4. Mr. Iswar Mohapatra, Learned Counsel for the applicant has submitted that the appeal is pending regarding the demand of income tax. Applicant is directed to file an affidavit along with a detailed chart with regard to appeals numbers which are pending before the Appellate Authorities.

By proceeding dated 08.04.2025, Ld. Counsel for the Official Liquidator had submitted that they have already filed the report and they have no objection in allowing the present application.

By proceeding dated 29.07.2025, Learned Counsel for the Regional Director had submitted that they have received the reply to RD's report and they have no further observations.

List on 24.02.2026.

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH